

November 19, 2014



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 13616
(FIFTH REVISION)

EXPIRATION DATE: October 31, 2018

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: U.S. Department of Commerce
Anchorage, AK
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the offering for transportation in commerce of Helium, compressed in DOT specification cylinders which are manifolded and permanently mounted in a protective frame. The cylinders are for use in support of the National Weather Service. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with use as a component of a transport vehicle or other device, or other uses not associated with the offering for transportation in commerce.
 - c. Party status will not be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.101 Table, Column (9B) in that the quantity limitation for cargo aircraft only is exceeded.

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5. BASIS: This special permit is based on the applications of the U.S. Department of Commerce dated October 30, 2014, submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Helium, compressed	2.2	UN1046	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Prescribed packagings are manifolded DOT Specification 3T, 3AAX, 3AX and 3AA cylinders within a standard ISO container frame bearing an ABS approval and CSC Safety Approval plate with the appropriate Approval number. The ISO container frame may be up to 20' long and 8' wide with heights to 4'3", and may contain cylinders up to 20' in length with water volumes up to 3000 liters. Each cylinder must: 1) be equipped with an individual shutoff valve that is tightly closed while in transit; 2) be separately charged; and 3) be provided with a means to insure that no interchange of cylinder contents can occur during transportation.

b. OPERATIONAL CONTROLS - The authorized air carrier is Lynden Air Cargo.

8. SPECIAL PROVISIONS:

a. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

b. Transportation of cylinders is only authorized to support the National Weather Service.

c. The marking requirements of § 172.301 are waived for each cylinder, however each frame must be marked "DOT-SP 13616".

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9. MODES OF TRANSPORTATION AUTHORIZED: Cargo aircraft only.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo aircraft used to transport packages covered by this special permit. The shipper must furnish a current copy of this special permit to the air carrier before or at the time the shipment is tendered.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
 - o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

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12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notice of certain hazardous materials incidents, and 171.16 Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: TG